

25STUD12687 25STUD12687

County: los-angeles

Division: Civil Law and Motion

Department: 633

Hearing date: 2026-08-31

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Case Number: 25STUD12687 Hearing Date: August 31, 2026 Dept: 633

MISSION PLAZA FAMILY APARTMENTS, LP v. RAMIREZ, et al.

(Hearing:

8/31/2026)

25STUD12687

Relief

Requested

Defendants'

Motion for Attorney's Fees

Tentative

Ruling

Defendants'

Motion for Attorney's Fees is GRANTED in the reduced

amount of \$24,735.00.

Background

On

December 1, 2025, Plaintiff Mission Plaza Family Apartments, LP (“Plaintiff”)

filed this unlawful detainer action against Defendants Gladys Y. Ramirez and

Andrea Ramirez (“Defendants”) for the residential premises located 2234

Parkside Ave., #304, Los Angeles, CA 90031 (the “Property”). The complaint

alleges that on or about July 1, 2023, Defendants entered into a written

agreement to rent the Property for a monthly rent of \$1,405.00—now \$1,421.00—due

on the first of each month. (Compl. ¶ 6.) The complaint alleges that on or

about October 16, 2025, Plaintiff had Defendants served, via posting and

mailing, with a thirty-day notice to pay rent or quit (the “Notice”) demanding

\$16,584.05 in unpaid rent for the months of November 2024 through October 2025.

(Id. ¶¶ 9–10, Exh. 2.)

The

court granted Defendants’ motion for summary judgment on July 23, 2026, and

entered judgment that same day. Defendants now move for an award of contractual

attorney’s fees in the amount of \$30,925.50,[1]

contending that they are entitled to fees under the parties’ lease. In support

of the motion, Defendants’ counsel testify that this fee award represents 40.4

hours of work reasonably performed by attorney Alanna Holt at an hourly rate of

\$600.00, 2.4 hours of work reasonably performed by attorney Jeanette

Alvarez-Webster at an hourly rate of \$650, 7.5 hours of work reasonably performed by attorney Kamilah Zadi, and 5.0 hours work reasonably performed by attorney Arturo Gomez at an hourly rate of \$500.00.

Plaintiff

opposes the motion, contending that the hours Defendants' counsel claim and the rates requested are unreasonable. In particular, Plaintiff contends that some of the work performed by Defendants' counsel may have been connected with a separate civil action pending between the parties and that, as a result, this time should be excluded from the present award.

Legal

Standard

Civil

Code § 1717(a) provides:

In

any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract . . . shall be entitled to reasonable attorney's fees in addition to other costs."

One

of the purposes behind section 1717 is to make otherwise unilateral attorney's fees provisions reciprocal as a matter of law. (ABF Capital Corp. v. Grove Properties Co. (2005) 126 Cal.App.4th 204, 217 ["Section 1717(a) is no default provision or gapfiller, subject to override by the parties. Rather, it represents a basic and fundamental policy choice by the state of California that nonreciprocal attorney's fees contractual provisions create reciprocal rights to such fees."].) The party seeking fees and costs "bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates." (ComputerXpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993, 1020.) In determining a reasonable attorney fee award, a court decides the "reasonable hours spent" on the case and multiplies the number by "the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.) The result is called the "lodestar" figure. (Id.)

Reasonable attorneys' fees are determined by examining the time spent and the reasonable hourly rate charged. (Serrano v. Priest (1977) 20 Cal.3d 25, 48-49.) Other considerations that may result in an upward or downward shift of the fees include the novelty and difficulty of the case, the legal skill needed to render services to the prevailing party, the customary fee for similar work,

whether the case was taken under contingency, the attorneys' experience and reputation, and other circumstances. (Id.)

Discussion

I.

Defendants Are the Prevailing Parties in this Contract Action

CCP § 1021 states that "[e]xcept as

attorney's fees are specifically provided for by statute, the measure and mode

of compensation of attorneys and counselors at law is left to the agreement,

express or implied, of the parties." CCP § 1032(b) states that "a prevailing

party is entitled as a matter of right to recover costs in any action or

proceeding." A prevailing party under this section includes "a defendant in

whose favor a dismissal is entered." (CCP § 1032(a)(4).) Further, CCP §

1033.5(a)(10) provides that costs can include attorney's fees when authorized

by contract, statute, or law.

Civil Code § 1717(a) provides that

"[i]n any action on a contract, where the contract specifically provides that

attorney's fees and costs, which are incurred to enforce that contract, shall

be awarded either to one of the parties or to the prevailing party, then the

party who is determined to be the party prevailing on the contract, whether he

or she is the party specified in the contract or not, shall be entitled to

reasonable attorney's fees in addition to other costs." However, "[w]here an action has been voluntarily dismissed or dismissed pursuant to a settlement of the case, there shall be no prevailing party for purposes of this section." (Civ. Code § 1717(b)(2).)

Moreover,

unlawful detainer actions based on breach of the lease during its term, such as for nonpayment of rent, are actions on a contract subject to Civil Code § 1717.

(*Mitchell Land and Imp. Co. v. Ristorante*

Ferrantelli, Inc. (2007) 158 Cal.App.4th 479, 486.) Further, the main

objective of an unlawful detainer action is the right to possession. (*Id.*)

Here, it cannot be

disputed that this action sounded in contract and that Defendants are the

prevailing parties. This action plainly sounded in contract, as it was based on

Defendants' alleged nonpayment of rent. (*Mitchell, supra*, 158

Cal.App.4th at 486.) Moreover, it is undisputed that Defendants prevailed on summary

judgment and had judgment entered in their favor. They are therefore the prevailing

parties under Civil Code § 1717 and are entitled to an award of attorney's fees

so long as the parties' lease so provides.

II.

The Attorney's Fees Provision Applies to this Action

When not authorized by statute,

entitlement to attorney fees derives from the contractual terms chosen, as

parties may limit or expand the circumstances under which attorney fees may be

awarded. (*Chacker v. JPMorgan Chase Bank,*

N.A. (2018) 27 Cal.App.5th 351, 357; see *Rideau v. Stewart Title of California, Inc.* (2015) 235 Cal.App.4th

1286, 1301 (whether a party to an agreement is entitled to attorney fees under

the agreement depends on its language).) In the case of a contractual attorney

fees provision, any inquiry begins with the language of the subject attorney

fees provision, and thus, for attorney fees to be recovered, the claim on which

the fees are incurred must fall within the scope of the attorney fee provision.

(*Exxess Electronixx v. Heger Realty Corp.*

(1998) 64 Cal.App.4th 698, 708; see *Mountain*

Air Enterprises, LLC v. Sundowner Towers, LLC (2017) 3 Cal.5th 744, 752,

760 (“it is necessary to determine whether the parties entered an agreement for

the payment of attorney fees, and if so, the scope of the attorney fee

agreement.”).)

This determination requires the

court to apply traditional rules of contract interpretation. (*Mountain Air Enterprises, supra,*

3 Cal.5th at 752.) Courts decline to take an overly formalistic approach in

deciding whether a prevailing party is entitled to contractual attorney fees,

and instead “consider the pleaded theories of recovery, the theories asserted and the evidence produced at trial, if any, and also any additional evidence submitted on the motion in order to identify the legal basis of the prevailing party’s recovery.” (Id. at 760-61.)

[W]e first consider the mutual

intention of the parties at the time the contract providing for attorney fees

was formed. (Civ. Code, § 1636.) Our initial inquiry is confined to the writing

alone. (Id., § 1639; [Citation

omitted].) ““The “clear and explicit” meaning of these provisions, interpreted

in their “ordinary and popular sense,” unless “used by the parties in a

technical sense or a special meaning is given to them by usage” ([Civ. Code], §

1644), controls judicial interpretation. (Id.,

§ 1638.) Thus, if the meaning a layperson would ascribe to contract language is

not ambiguous, we apply that meaning.’ [Citations.]” ([Citations omitted].) At

the same time, we also recognize the “interpretational principle that a

contract must be understood with reference to the circumstances under which it

was made and the matter to which it relates. (Civ. Code, § 1647).”

(Id. at 752.) Further, “[t]he whole of a

contract is to be taken together, so as to give effect to every part, if

reasonably practicable, each clause helping to interpret the other.” (Civ. Code

§ 1641.)

Here, paragraph 19 of Defendants' written

lease, which Plaintiff produced in discovery, provides that "[i]f Lessor, in

order to enforce any provision of this lease or in defense

of

any claim regarding this lease asserted by the Lessee, incurs attorney's fees

or other costs or expenses, Lessee agrees to pay all such fees and costs

whether or not suit is filed by or against Lessee." (Mot. Holt Decl. ¶ 2, Exh.

A.) This broad language is sufficient to encompass this contract claim. Accordingly,

the court finds that Defendants, as the prevailing parties in this action

brought as a result of their failure to pay rent, are entitled to an award of

reasonable attorney's fees.

III.

Calculation of the Fee Award

The

party seeking fees and costs "bear[s] the burden of establishing entitlement to

an award and documenting the appropriate hours expended and hourly rates." (ComputerXpress, Inc. v. Jackson (2001)

93 Cal.App.4th 993, 1020.) In determining a reasonable attorney fee award, a

court decides the "reasonable hours spent" on the case and multiplies the

number by "the hourly prevailing rate for private attorneys in the community

conducting noncontingent litigation of the same type.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.) The result is called the “lodestar” figure. (Id.)

Reasonable attorneys’ fees are determined by

examining the time spent and the reasonable hourly rate charged. (Serrano v. Priest (1977) 20 Cal.3d 25,

48-49.) Other considerations that may result in an upward or downward shift of

the fees include the novelty and difficulty of the case, the legal skill needed

to render services to the prevailing party, the customary fee for similar work,

whether the case was taken under contingency, the attorneys’ experience and

reputation, and other circumstances. (Id.)

i. Number of Expended Reasonable

Hours

A

court determining the number of hours reasonably expended on a case “must

carefully review attorney documentation of hours expended.” (Ketchum, supra, 24 Cal.4th at

1132.) In doing so, the court must exclude hours that were “duplicative or

excessive.” (Graciano v. Robinson Ford

Sales, Inc. (2006) 144 Cal.App.4th 140, 161.) “Reasonable compensation does

not include compensation for ‘padding’ in the form of inefficient or

duplicative efforts.” (Donahue v. Donahue

(2010) 182 Cal.App.4th 259, 271 [quoting Ketchum, supra, 24 Cal.4th at 1131–1132].) A court

determining the number of hours reasonably expended on a case “must carefully

review attorney documentation of hours expended.” (Ketchum, supra, 24 Cal.4th at 1132.) In

doing so, the court must exclude hours that were “duplicative or excessive.” (Graciano v. Robinson Ford Sales, Inc. (2006)

144 Cal.App.4th 140, 161.) “Reasonable compensation does not include

compensation for ‘padding’ in the form of inefficient or duplicative efforts.”

(Donahue v. Donahue (2010) 182

Cal.App.4th 259, 271 [quoting Ketchum, supra, 24 Cal.4th at 1131–1132].) Here,

Defendants seek to recover attorney’s fees for work performed by four attorneys

on this matter. The court will address each counsel’s hours in turn.

a.

Attorney Alanna Holt

Defendants

claim that Ms. Holt spent a total of 40.4 hours working on this matter. Upon

review of counsel’s testimony and the record in this action, and given this

court’s experience and observations thereof, the requested amount is excessive.

Accordingly, the court reduces Ms. Holt’s requested 40.4 hours to 35.8 hours

for the reasons set forth below.

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Counsel requests a total of 3.5 hours for time

spent drafting Defendants’ motion for summary judgment. Considering that Ms.

Zadi also spent 3.0 hours on the same motion and the nature of the issues involved, the Court finds the requested time excessive and will reduce it by 3.0 hours.

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Counsel requests a total of 2.0 hours for time spent on July 7, 2026, for preparing "jury docs." Considering the trial documents counsel filed that day, the court finds this time excessive and will reduce the request by 0.5 hours.

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Counsel requests a total of 3.6 hours for time spent reviewing Plaintiff's opposition to Defendants' motion for summary judgment and preparing a reply. Considering the nature of the issues raised in the opposition and addressed in the reply, the court finds this time excessive and will reduce the request by 1.1 hours.

b.

Attorney Jeanette Alvarez-Webster

Defendants

request that Ms. Alvarez-Webster be compensated for a total of 2.4 hours spent working on this matter. Upon review of counsel's testimony and the record in this action, and given this court's experience and observations thereof, the

requested amount is reasonable.

c.

Attorney Kamilah Zadi

Defendants

request that Ms. Zadi be compensated for a total of 7.5 hours spent working on

this matter. Upon review of counsel's testimony and the record in this action,

and given this court's experience and observations thereof, the requested

amount is unreasonable. In particular, the court notes that Ms. Zadi requests a

total of 3.0 hours for time spent on "Substituted into case, research defenses

and facts of the case,

review

all actions taken with case." This entry is block billed, making it difficult

to ascertain what time was necessary and reasonably incurred and raising

credibility questions about the billing records submitted. (See *Guillory v. Hill* (2019) 36 Cal.App.5th

802, 815–816 [trial court made implicit determination that counsel's billing

records were not credible, as "[c]ounsel may not submit a plethora of

noncompensable, vague, block-billed attorney time entries and expect

particularized, individual deletions as the only consequence"].) Accordingly,

the court will reduce Ms. Zadi's requested time to 5.5 hours.

d.

Attorney Arturo Gomez

Defendants

request that Mr. Gomez be compensated for a total of 5.0 hours spent working on this matter. Upon review of counsel's testimony and the record in this action, and given this court's experience and observations thereof, the requested amount is excessive. In particular, Mr. Gomez requests a total of 2.0 hours for time spent propounding discovery on January 30, 2026. Considering the nature of this dispute and the fact that Ms. Holt is also being compensated for 0.8 hours spent drafting the same discovery, the court finds this time to be excessive and will reduce the request by 1.0 hour.

ii. Reasonable Hourly

Rate

It is well established that "[w]hen the trial court is informed of the extent and nature of the legal services rendered, it may rely on its own experience and knowledge in determining their reasonable value." (In re Marriage of Huntington (1992) 10 Cal.App.4th 1513, 1524.) "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to

which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.' [Citation.]" (Morris, supra, 41 Cal.App.5th at 41; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 272 ("[A] reasonable hourly rate is the product of a multiplicity of factors the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case.")) Here, Defendants seek to recover different hourly rates for each of their two attorneys. The court will address each counsel's rate in turn.

a.

Attorney Alanna Holt

Ms. Holt requests that the court set an hourly rate of \$600.00/hour for her time, which she testified is reasonable in light of her thirteen years of legal experience. Given the nature of the issues involved in this action, and the nature of the work Ms. Holt performed, the court finds this rate to be unreasonable. (In re Marriage of Huntington, supra, 10 Cal.App.4th at 1524.)

Rather, the court finds that a reasonable hourly rate for the work Ms. Holt performed in this action is \$550.00. (Ketchum,

supra, 24 Cal.4th at 1132; see In

re Marriage of Huntington, supra, 10 Cal.App.4th at 1524.)

b.

Attorney Jeanette Alvarez-Webster

Ms. Alvarez-Webster requests that the court set an

hourly rate of \$650.00/hour for her time, which she testified is reasonable in

light of sixteen years—five before passing the bar exam and the remainder since—of

experience litigating landlord–tenant disputes. Given the nature of the issues

involved in this action, and the limited nature of the work Ms. Alvarez-Webster

performed, the court finds this rate to be unreasonable. (In re Marriage of Huntington, supra, 10 Cal.App.4th at

1524.) Rather, the court finds that a

reasonable hourly rate for the work Ms. Alvarez-Webster performed in this

action is \$550.00. (Ketchum, supra, 24 Cal.4th at 1132; see In

re Marriage of Huntington, supra, 10 Cal.App.4th at 1524.)

c.

Attorney Kamilah Zadi

Ms. Zadi requests that the court set an hourly rate

of \$350.00/hour for her time. Upon review, the court finds this rate to be

reasonable.

d.

Attorney Arturo Gomez

Mr. Gomez requests that the court set an hourly rate

of \$500.00/hour for his time, which he testified is reasonable in light of his

five years of experience litigating landlord–tenant disputes. Given the nature

of the issues involved in this action, and the limited nature of the work Mr.

Gomez performed, the court finds this rate to be unreasonable. (In re Marriage of Huntington, supra, 10 Cal.App.4th at

1524.) Rather, the court finds that a

reasonable hourly rate for the work Mr. Gomez performed in this action is

\$450.00. (Ketchum, supra, 24 Cal.4th at 1132; see In

re Marriage of Huntington, supra, 10 Cal.App.4th at 1524.)

Conclusion

Defendants' Motion for

Attorney's Fees is GRANTED in the reduced amount of \$24,735.00, reflecting a

total of:

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35.8 hours reasonably worked by Defendants' counsel Ms. Holt at

a reasonable hourly rate of \$550.00;

.

2.4 hours reasonably worked by Defendants' counsel Ms.

Alvarez-Webster at a reasonable hourly rate of \$550.00;

.

5.5 hours reasonably worked by Defendants' counsel Ms. Zadi at a

reasonable hourly rate of \$350.00; and

.

4.0 hours reasonably worked by Defendants' counsel Mr. Gomez at

a reasonable hourly rate of \$450.00.

[1] Defendants' motion papers actually

request \$30,935.00, but this appears to be the result of a computation error.

Adding up the total hours requested multiplied by the requested hourly rates

results in \$30,925.00.